

TAKEDA PHARMACEUTICAL COMPANY LIMITED v. QILU PHARMACEUTICAL (HAINAN) CO., LTD.

Plaintiff:	TAKEDA PHARMACEUTICAL COMPANY LIMITED
Defendant:	QILU PHARMACEUTICAL (HAINAN) CO., LTD.
Case Number:	2:2026cv12587
Filed:	September 23, 2026
Court:	U.S. District Court for the District of New Jersey
Presiding Judge:	Esther Salas
Referring Judge:	Alex D Silagi
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 271 Patent Infringement
Jury Demanded By:	None



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Docket Report

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Date Filed	Document Text
September 24, 2026	Filing 6 SUMMONS ISSUED as to QILU PHARMACEUTICAL (HAINAN) CO., LTD. Attached is the official court Summons, please fill out Defendant and Plaintiffs attorney information and serve. (adc,)
September 24, 2026	Filing 5 AO120 Patent Form filed. (adc,)
September 24, 2026	Filing 4 NOTICE of Appearance by ALEXANDER LEE CALLO on behalf of TAKEDA PHARMACEUTICAL COMPANY LIMITED (CALLO, ALEXANDER)
September 24, 2026	Filing 3 NOTICE of Appearance by SARAH ANN SULLIVAN on behalf of TAKEDA PHARMACEUTICAL COMPANY LIMITED (SULLIVAN, SARAH)
September 24, 2026	Case assigned to Judge Esther Salas and Magistrate Judge Alex D. Silagi. (tjg,)
September 23, 2026	Filing 2 Corporate Disclosure Statement by TAKEDA PHARMACEUTICAL COMPANY LIMITED. (LIZZA, CHARLES)

Date Filed	Document Text
September 23, 2026	Filing 1 COMPLAINT against QILU PHARMACEUTICAL (HAINAN) CO., LTD. (Filing and Admin fee \$ 405 receipt number ANJDC-17981058) , Related Case Selected, filed by TAKEDA PHARMACEUTICAL COMPANY LIMITED. (Attachments: #1 Exhibit A, #2 Civil Cover Sheet)(LIZZA, CHARLES)

I. Executive Summary and Procedural Information

Parties & Counsel:	
Plaintiff:	Takeda Pharmaceutical Company Limited (Japan)
Defendant:	Qilu Pharmaceutical (Hainan) Co., Ltd. (China)
Plaintiff's Counsel:	Saul Ewing LLP
Case Identification:	2:26-cv-12587 , D.N.J., 09/23/2026
Venue Allegations:	Plaintiff alleges venue is proper in the District of New Jersey because Defendant conducts business in the United States and New Jersey, the district is a likely destination for the accused product, and Defendant has previously consented to personal jurisdiction and availed itself of courts in the district in prior litigation.
Core Dispute:	This is a Hatch-Waxman Act case in which Plaintiff Takeda alleges that Defendant Qilu's submission of an Abbreviated New Drug Application (ANDA) to the FDA for a generic version of Takeda's antiviral drug LIVTENCITY® (maribavir) constitutes an act of infringement of a patent covering methods of using the drug.
Technical Context:	The technology relates to pharmaceutical methods for treating cytomegalovirus (CMV), a common and serious viral infection, particularly in post-transplant patients with compromised immune systems.
Key Procedural History:	The lawsuit was triggered by Qilu's submission of an ANDA with a Paragraph IV certification, asserting that its proposed generic drug would not infringe Takeda's patent or that the patent is invalid. The complaint notes several other related lawsuits filed by Takeda against other generic manufacturers for the same drug, as well as a prior case against Qilu, indicating a broad effort to enforce patent protection for LIVTENCITY®.

Case Timeline

Date	Event
2010-10-28	Earliest Priority Date for '368 Patent
2026-06-23	'368 Patent Issued
2026-09-11	Qilu's Notice Letter to Takeda
2026-09-23	Complaint Filed

II. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 12,661,368 - "Maribavir Isomers, Compositions, Methods of Making and Methods of Using"

Patent Identification: U.S. Patent No. [12,661,368](#), "Maribavir Isomers, Compositions, Methods of Making and Methods of Using," issued June 23, 2026.

The Invention Explained

Problem Addressed: The patent's background section describes the "unexpected discovery that maribavir may isomerize under in vivo conditions" into different, potentially less effective molecular forms '368 Patent, col. 1:63-65 This isomerization is believed to "decrease the effective biological activity" of the administered drug, which the patent suggests may explain why a Phase 3 clinical trial failed its primary endpoint after a more promising Phase 2 trial had succeeded '368 Patent, col. 2:25-27 '368 Patent, col. 2:28-35 The patent identifies a key difference: the successful trial used a "fasted dosing protocol," while the failed trial permitted dosing with food, a condition believed to promote the undesirable isomerization '368 Patent, col. 2:50-57

The Patented Solution: The invention claims to solve this problem by defining a specific method of administration designed to enhance efficacy by controlling for factors that lead to isomerization. The patent claims a method of treating CMV by orally administering maribavir at a specific dose ("400 mg twice a day") in an "immediate release formulation" that dissolves quickly '368 Patent, claim 1 The specification details that maribavir should be administered in ways that "prevent or at least reduce the unwanted occurrence of maribavir isomerization in vivo," such as under fasted conditions '368 Patent, col. 3:10-13 '368 Patent, col. 4:64-65

Technical Importance: The patented method provides a potential pathway to clinical and commercial viability for maribavir by identifying a previously unrecognized variable (in vivo isomerization) and proposing a specific dosing and formulation strategy to manage it, thereby rescuing a drug that had shown mixed results in late-stage clinical trials '368 Patent, col. 2:48-65

Key Claims at a Glance

The complaint asserts infringement of "one or more claims" of the '368 Patent, which contains two independent method claims '368 Patent, claims 1-2 Compl. ¶28

Independent Claim 1 consists of the following essential elements:

A method of treating a cytomegalovirus (CMV) infection in a patient having a CMV infection, the method comprising

orally administering to the patient the compound 5,6-dichloro-2-(isopropylamino)-1-(β-L-ribofuranosyl)-1H-benzimidazole

in an amount of 400 mg twice a day,

wherein said compound is administered as a composition comprising a therapeutically acceptable adjuvant, excipient, or carrier medium,

wherein said composition is an immediate release formulation,

and wherein the immediate release formulation releases said compound from said formulation by dissolution in less than 60 minutes.

Claim 2 is substantially similar, but defines the release characteristic as occurring "in vivo in less than 60 minutes following administration" '368 Patent, claim 2 The complaint does not specify which claims are asserted but reserves the right to assert any of them.

III. The Accused Instrumentality

Product Identification: The accused instrumentality is "Qilu's ANDA Product," a proposed generic version of Takeda's LIVTENCITY® (maribavir) in the form of 200 mg tablets, for which Qilu has filed ANDA No. 221142 seeking FDA approval [Compl. ¶22](#) [Compl. ¶28](#)

Functionality and Market Context:

As a generic drug submitted under an ANDA, Qilu's product is intended to be a therapeutic equivalent to the branded drug, LIVTENCITY® [Compl. ¶26](#)

LIVTENCITY® is a pUL97 kinase inhibitor indicated for treating post-transplant CMV infection/disease that is refractory to other antiviral treatments [Compl. ¶5](#)

The infringement theory is predicated on the requirement that a generic drug's labeling must substantially mirror that of the reference listed drug. The complaint alleges that the FDA-approved label for LIVTENCITY® "instructs and encourages" administration according to the patented method, and that Qilu's generic product label will therefore do the same [Compl. ¶8](#)

IV. Analysis of Infringement Allegations

The complaint does not contain a detailed claim chart. The infringement allegations are based on the statutory act of filing an ANDA seeking approval to market a generic drug for an infringing use prior to patent expiration [Compl. ¶28](#) The following table summarizes the infringement theory as inferred from the complaint and the nature of ANDA litigation.

'368 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A method of treating a cytomegalovirus (CMV) infection in a patient having a CMV infection...	Qilu's ANDA product is a generic version of LIVTENCITY®, which is indicated for the treatment of CMV infection.	¶5	col. 8:1-2
orally administering to the patient the compound 5,6-dichloro-2-(isopropylamino)-1-(β-L-ribofuranosyl)-1H-benzimidazole	The accused product consists of "maribavir tablets," which are intended for oral administration as instructed on the product label.	¶22	col. 5:12
in an amount of 400 mg twice a day	It is alleged that the label for Qilu's 200 mg tablets will instruct patients to take two tablets twice daily to achieve the approved 400 mg dose.	¶22	col. 8:2-3
wherein said composition is an immediate release formulation...and wherein the immediate release	It is alleged that to be bioequivalent to the branded immediate-release LIVTENCITY® product, Qilu's	¶26	col. 8:6-10

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
formulation releases said compound from said formulation by dissolution in less than 60 minutes.	ANDA product must also be an immediate-release formulation meeting this dissolution profile.		

No probative visual evidence provided in complaint.

Identified Points of Contention:

Technical Question: A key factual question for the court will be whether Qilu's proposed generic product, as described in its ANDA, actually meets the quantitative limitation of an "immediate release formulation" that releases the compound "by dissolution in less than 60 minutes." Discovery into Qilu's ANDA filing will be necessary to obtain the evidence to resolve this question.

Scope Question: The case will likely depend heavily on a theory of induced infringement. This raises the legal question of whether the instructions for use in Qilu's proposed product label will be found to actively encourage or instruct physicians and patients to perform each and every step of the patented method, thereby establishing the specific intent required for inducement.

V. Key Claim Terms for Construction

The Term: "immediate release formulation"

Context and Importance: This term is critical, as the patent uses the formulation type to distinguish the claimed method from the conditions that allegedly caused the prior Phase 3 clinical trial to fail. Practitioners may focus on this term because its construction will determine whether Qilu's bioequivalent product falls within the scope of the claims.

Intrinsic Evidence for Interpretation:

Evidence for a Broader Interpretation: The patent provides its own definition. Both Claim 1 and the specification state that an "immediate release" formulation is one that releases the drug "by dissolution in less than 60 minutes" ^{'368 Patent, claim 1} ^{'368 Patent, col. 6:30-34} A party may argue that this performance-based definition should control, meaning any formulation that meets this dissolution standard infringes, regardless of its specific composition.

Evidence for a Narrower Interpretation: A party could argue that the term should be read in light of the problems described in the specification, such as isomerization under "fed" conditions ^{'368 Patent, col. 2:50-65} This could support an argument that the term implies a formulation specifically designed or tested for administration under "fasted conditions," potentially narrowing the claim scope ^{'368 Patent, col. 6:4-11}

VI. Other Allegations

Indirect Infringement: The complaint alleges both induced and contributory infringement.

□The inducement allegation is based on the assertion that Qilu, with knowledge of the '368 patent, will sell its product with a label that intentionally encourages direct infringement by instructing users to follow the patented method **Compl. ¶31**

□The contributory infringement allegation is based on the assertion that Qilu's product is especially adapted for an infringing use and has no substantial non-infringing use **Compl. ¶32**

□**Willful Infringement:** While the complaint does not use the term "willful," it alleges that Qilu has had "knowledge of the '368 patent since at least the date of Qilu's Paragraph IV Certification" **Compl. ¶33** It also pleads that the case is "exceptional" and requests attorneys' fees under 35 U.S.C. § 285, which is the statutory basis for such an award, often in cases of willful or egregious conduct **Compl. ¶35 Compl., prayer J**

VII. Analyst's Conclusion: Key Questions for the Case

The resolution of this Hatch-Waxman litigation will likely depend on the court's findings on three central questions:

- A core issue will be one of **claim construction and scope:** can the term "immediate release formulation," as defined by the patent's quantitative dissolution limit, be met simply by the bioequivalence data required for an ANDA filing, or will specific evidence from Qilu's formulation be required to prove it falls within the claim?
- A key legal question will be one of **induced infringement:** does the anticipated language on the label for Qilu's generic product rise to the level of actively instructing or encouraging prescribers and patients to administer the drug in the specific "400 mg twice a day" regimen, thereby establishing the requisite intent for infringement?
- Finally, a central validity question, which Qilu will almost certainly raise in its defense, will be one of **obviousness:** was it obvious for a person of ordinary skill in the art to arrive at the claimed method of administering maribavir, given the public knowledge and the results of the prior clinical studies disclosed in the patent's own background section?

Case 2:26-cv-12587 Document 1 Filed 09/23/26 Page 1 of 11 PageID: 1 Charles M. Lizza Sarah A. Sullivan Alexander L. Callo SAUL EWING LLP 650 College Road East, Suite 4000 Princeton, NJ 08540 (973) 286-6700 clizza@saul.com Attorneys for Plaintiff Takeda Pharmaceutical Company Limited OF COUNSEL: F. Dominic Cerrito Angus Chen Andrew Chalson Elizabeth Murphy Marta Godecki Abigail DeMasi QUINN EMANUEL URQUHART & SULLIVAN, LLP 295 Fifth Avenue New York, New York 10016 Jihong Lou QUINN EMANUEL URQUHART & SULLIVAN, LLP 555 13th Street NW, Suite 600 Washington, D.C. 20004 UNITED STATES DISTRICT COURT DISTRICT OF NEW JERSEY TAKEDA PHARMACEUTICAL COMPANY LIMITED, Plaintiff, v. QILU PHARMACEUTICAL (HAINAN) CO., LTD., Defendant. Civil Action No. _____ COMPLAINT FOR PATENT INFRINGEMENT (Filed Electronically) Plaintiff Takeda Pharmaceutical Company Limited ("Plaintiff" or "Takeda"), by its attorneys, for its complaint against Qilu Pharmaceutical (Hainan) Co., Ltd. ("Defendant" or "Qilu") alleges as follows: NATURE OF THE ACTION 1. This is a civil action for infringement of United States Patent No. 12,661,368 (the "'368 patent") (the "Patent-in-Suit"), owned by Takeda, under the patent laws of the United States, 35 U.S.C. §100, et seq. This action

arises from Qilu's submission of Abbreviated New Drug Application ("ANDA") No. 221142 ("Qilu's ANDA") to the United States Food and Drug Administration ("FDA") seeking approval to manufacture, use, import, distribute, offer to sell, and/or sell a generic version of LIVTENCITY® prior to the expiration of the Patent-in-Suit. THE PARTIES 2. Takeda is a corporation organized and existing under the laws of Japan, having an office and place of business at 1-1, Doshomachi 4-chome, Chuo-ku, Osaka, Japan. 3. On information and belief, Qilu is a corporation organized and existing under the laws of China, having a place of business at No. 273-A, Nanhai Avenue, National High-Tech Zone, Haikou, Hainan, 570314, China. THE PATENT-IN-SUIT 4. On June 23, 2026, the United States Patent and Trademark Office duly and lawfully issued the '368 patent, entitled "Maribavir Isomers, Compositions, Methods of Making and Methods of Using." A copy of the '368 patent is attached as Exhibit A. THE LIVTENCITY® DRUG PRODUCT 5. LIVTENCITY® is a cytomegalovirus ("CMV") pUL97 kinase inhibitor indicated for the treatment of adults and pediatric patients (12 years of age and older and weighing at least 35 kg) with post-transplant CMV infection/disease that is refractory to treatment (with or without genotypic resistance) with ganciclovir, valganciclovir, cidofovir, or foscarnet. 6. Pursuant to 21 U.S.C. § 355(b)(1) and attendant FDA regulations, the Patent-in-Suit is listed in the FDA publication titled "Approved Drug Products with Therapeutic Equivalence Evaluations" (the "Orange Book") with respect to LIVTENCITY®. 7. The claims of the Patent-in-Suit cover, inter alia, methods of using maribavir.

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1.

The FDA-approved labeling for LIVTENCITY® instructs and encourages physicians, pharmacists, other healthcare workers, and patients to orally administer LIVTENCITY® according to one or more methods claimed in the Patent-in-Suit. JURISDICTION AND VENUE 9. This action arises under the patent laws of the United States, 35 U.S.C. §§ 100, et seq., and this Court has jurisdiction over the subject matter of this action under 28 U.S.C. §§ 1331, 1338(a), 2201, and 2202. 10. On information and belief, Qilu is in the business of, among other things, developing, manufacturing, marketing, importing, offering for sale, and selling pharmaceutical products, including generic drug products, throughout the United States, including in this Judicial District. 11. On information and belief, Qilu prepares and submits ANDAs to the FDA, including Qilu's ANDA. The Orange Book identifies "QILU PHARMACEUTICAL HAINAN CO LTD" as the holder of an ANDA for more than thirty generic prescription products. On information and belief, Qilu is the ANDA holder for generic pharmaceutical products that Qilu sells and/or distributes throughout the United States. 12. On information and belief, Qilu derives substantial revenue, directly or indirectly, from selling generic pharmaceutical products throughout the United States, including in this Judicial District. 13. On information and belief, Qilu will work towards the regulatory approval, manufacturing, use, importation, marketing, offer for sale, sale, and distribution of generic pharmaceutical products, including those described in Qilu's ANDA, throughout the United States, including in New Jersey and in this Judicial District, prior to the expiration of the Patent-in-Suit.

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1. On information and belief, Qilu intends to benefit directly if Qilu's ANDA is approved, including by participating in the manufacture, importation, distribution, and/or sale of the generic drug product that is the subject of Qilu's ANDA.

2. On information and belief, this Judicial District is a likely destination for the generic drug product described in Qilu's ANDA.
3. This Court has personal jurisdiction over Qilu because, inter alia, it: (1) has purposefully availed itself of the privilege of doing business in the State of New Jersey; and (2) maintains extensive and systematic contacts with the State of New Jersey, including through the marketing, distribution, and/or sale of generic pharmaceutical drugs in New Jersey (see, e.g., supra ¶¶ 10-12).
- 4.

In the alternative, this Court has personal jurisdiction over Qilu because the requirements of Federal Rule of Civil Procedure 4(k)(2)(A) are met, as (a) Plaintiff's claims arise under federal law; (b) Qilu is a foreign defendant not subject to general personal jurisdiction in the courts of any state; and (c) Qilu has sufficient contacts with the United States as a whole, including, but not limited to, preparing and submitting an ANDA to the FDA and/or manufacturing and/or selling pharmaceutical products distributed throughout the United States, such that this Court's exercise of jurisdiction over Qilu satisfies due process. 18. This Court also has personal jurisdiction over Qilu because, inter alia, it has committed an act of patent infringement under 35 U.S.C. § 271(e)(2), and on information and belief, Qilu intends a future course of conduct that includes acts of patent infringement in New Jersey. These acts have led and will continue to lead to foreseeable harm and injury to Plaintiff in New Jersey and in this Judicial District.

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1. On information and belief, Qilu has previously invoked, stipulated, and/or consented to personal jurisdiction in this Judicial District in numerous prior patent cases.
2. Qilu has previously been sued in this Judicial District, has availed itself of New Jersey courts (including this Court) through the assertion of counterclaims in suits brought in New Jersey (including this Court), and has not challenged personal jurisdiction in New Jersey. See, e.g., Takeda Pharm. Co. Ltd. v. Qilu Pharm. (Hainan) Co., Ltd., No. 26-1633 (D.N.J.) (consolidated); Impax Labs., LLC v. Qilu Pharm. (Hainan) Co., Ltd., et al., No. 25-1962 (D.N.J.); Astellas Pharma Inc., et al. v. Qilu Pharm. (Hainan) Co., Ltd., et al., No. 24-8217 (D.N.J.).
3. Venue is proper in this Judicial District pursuant to 28 U.S.C. §§ 1391 and/or 1400(b). ACTS GIVING RISE TO THIS SUIT
- 4.

Pursuant to Section 505 of the Federal Food, Drug, and Cosmetics Act ("FD&C Act"), Qilu submitted Qilu's ANDA seeking approval to engage in the commercial manufacture, use, sale, or offer for sale in, or importation into, the United States of maribavir tablets, 200 mg ("Qilu's ANDA Product") before expiration of the Patent-in-Suit. 23. On information and belief, following FDA approval of Qilu's ANDA, Qilu, unless enjoined by this Court, will make, use, offer for sale, or sell Qilu's ANDA Product throughout the United States, or import such generic product into the United States. 24. On information and belief, in connection with the submission of Qilu's ANDA as described above, Qilu provided written certification to the FDA pursuant to Section 505 of the FD&C Act and 21 U.S.C. § 355(j)(2)(A)(vii)(IV) ("Paragraph IV Certification"). 25. By letter

dated September 11, 2026, Qilu purported to provide notice pursuant to Section 505(j)(2)(B)(iv) of the FD&C Act and 21 C.F.R. § 314.95 to Takeda (“Qilu’s Notice

- 5 - Case 2:26-cv-12587 Document 1 Filed 09/23/26 Page 6 of 11 PageID: 6 Letter”) that Qilu had submitted Qilu’s ANDA to the FDA with a Paragraph IV Certification, seeking approval to commercially manufacture, use, sell, offer for sale, or import Qilu’s ANDA Product before expiration of the Patent-in-Suit.

1. Qilu’s ANDA Product is intended to be a generic version of LIVTENCITY®. COUNT I Infringement of U.S. Patent No. 12,661,368

2.

herein. 28. Qilu’s submission of ANDA No. 221142 for the purpose of obtaining approval to engage in the commercial manufacture, use, sale, offer for sale, or importation into the United States of Qilu’s ANDA Product before the expiration of the ’368 patent constitutes infringement of one or more claims of that patent under 35 U.S.C. § 271(e)(2)(A). 29. There is a justiciable controversy between the parties hereto as to infringement of the ’368 patent. 30. Unless enjoined by this Court, upon FDA approval of Qilu’s ANDA, Qilu will infringe one or more claims of the ’368 patent under 35 U.S.C. § 271(a) by making, using, offering to sell, selling, and/or importing Qilu’s ANDA Product in or for the United States. 31. Unless enjoined by this Court, upon FDA approval of Qilu’s ANDA, Qilu will induce infringement of one or more claims of the ’368 patent under 35 U.S.C. § 271(b) by making, using, offering to sell, selling, and/or importing Qilu’s ANDA Product in or for the United States. On information and belief, upon FDA approval of Qilu’s ANDA, Qilu will intentionally encourage acts of direct infringement with knowledge of the ’368 patent and knowledge that its acts are encouraging infringement. Plaintiff repeats and realleges the preceding paragraphs above as if fully set forth

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1. Unless enjoined by this Court, upon FDA approval of Qilu’s ANDA, Qilu will contributorily infringe one or more claims of the ’368 patent under 35 U.S.C. § 271(c) by making, using, offering to sell, selling, and/or importing Qilu’s ANDA Product in or for the United States. On information and belief, Qilu has had and continues to have knowledge that Qilu’s ANDA Product is especially adapted for a use that infringes one or more claims of the ’368 patent and that there is no substantial non-infringing use for Qilu’s ANDA Product.

2. Qilu has had knowledge of the ’368 patent since at least the date of Qilu’s Paragraph IV Certification.

3.

Plaintiff will be substantially and irreparably harmed if Qilu’s infringement of the ’368 patent is not enjoined. Plaintiff does not have an adequate remedy at law. 35. This case is an exceptional one, and Plaintiff is entitled to an award of its reasonable attorneys’ fees under 35 U.S.C. § 285. PRAYER FOR RELIEF WHEREFORE, Plaintiff respectfully requests the following relief: A. A Judgment that Qilu has infringed one or more claims of the Patent-in-Suit by submitting ANDA No. 221142; B. A Judgment that Qilu’s making, using, selling, offering to sell, or importing Qilu’s ANDA Product will infringe one or more claims of the Patent-in-Suit; C. An Order, pursuant to 35 U.S.C. § 271(e)(4)(A), that the effective date of FDA approval of ANDA No. 221142 be a date that is no earlier than the later of the expiration of the Patent-in-Suit, or any later expiration of

exclusivity to which Plaintiff is or becomes entitled; D. Preliminary and permanent injunctions restraining and enjoining Qilu and its officers, agents, attorneys, and employees, and those acting in privity and/or concert with it and/or them, from making, using, offering to sell, selling, or importing Qilu's ANDA Product

- 7 - Case 2:26-cv-12587 Document 1 Filed 09/23/26 Page 8 of 11 PageID: 8 until after the expiration of the Patent-in-Suit, or any later expiration of exclusivity to which Plaintiff is or becomes entitled; E. A permanent injunction, pursuant to 35 U.S.C. § 271(e)(4)(B), restraining and enjoining Qilu and its officers, agents, attorneys, and employees, and those acting in privity and/or concert with it and/or them, from practicing any of the subject matter claimed in the Patent-in-Suit, or actively inducing or contributing to the infringement of any claim of the Patent-in-Suit, until after the expiration of the Patent-in-Suit, or any later expiration of exclusivity to which Plaintiff is or becomes entitled; F. A Judgment that the commercial manufacture, use, importation into the United States, offer for sale, and/or sale of Qilu's ANDA Product will directly infringe, induce, and/or contribute to infringement of one or more claims of the Patent-in-Suit; G. To the extent that Qilu committed any acts with respect to the subject matter claimed in the Patent-in-Suit, other than those acts expressly exempted by 35 U.S.C. § 271(e)(1), a Judgment awarding Plaintiff damages for such acts; H. If Qilu, its officers, agents, attorneys, and employees, and/or those acting in privity and/or concert with it and/or them, engages in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of Qilu's ANDA Product prior to the expiration of the Patent-in-Suit, a Judgment awarding damages to Plaintiff resulting from such infringement, together with interest; I. A Judgment declaring that the Patent-in-Suit remains valid; J. A Judgment that this is an exceptional case pursuant to 35 U.S.C. § 285 and awarding Plaintiff its attorneys' fees, costs, and expenses incurred in this action; and K. Any such other and further relief as this Court may deem just and proper.
- 8 - Case 2:26-cv-12587 Document 1 Filed 09/23/26 Page 9 of 11 PageID: 9 Dated: September 23, 2026 OF COUNSEL: F. Dominic Cerrito Angus Chen Andrew Chalson Elizabeth Murphy Marta Godecki Abigail DeMasi QUINN EMANUEL URQUHART & SULLIVAN, LLP 295 Fifth Avenue New York, New York 10016 Jihong Lou QUINN EMANUEL URQUHART & SULLIVAN, LLP 555 13th Street NW, Suite 600 Washington, D.C. 20004 By: s/ Charles M. Lizza Charles M. Lizza Sarah A. Sullivan Alexander L. Callo SAUL EWING LLP 650 College Road East, Suite 4000 Princeton, NJ 08540(973) 286-6700 clizza@saul.com Attorneys for Plaintiff Takeda Pharmaceutical Company Limited
- 9 - Case 2:26-cv-12587 Document 1 Filed 09/23/26 Page 10 of 11 PageID: 10 CERTIFICATION PURSUANT TO LOCAL CIVIL RULES 11.2 & 40.1 Pursuant to Local Civil Rules 11.2 and 40.1, I hereby certify that the matter captioned Takeda Pharmaceutical Company Limited v. Sun Pharmaceutical Industries Ltd., Civil Action No. 26-11870 (D.N.J.) (ES)(ADS) is related to the matter in controversy because the matter in controversy involves the same plaintiff, the same patent, and because Qilu is seeking FDA approval to market a generic version of the same pharmaceutical product. I further certify that the matters captioned Takeda Pharmaceutical Company Limited v. Annora Pharma Private Ltd., Civil Action No. 26-9729 (D.N.J.) (ES)(ADS), Takeda Pharmaceutical Company Limited v. Annora Pharma Private Ltd., Civil Action No. 26-1780 (D.N.J.) (ES)

(ADS), Takeda Pharmaceutical Company Limited v. Sun Pharmaceutical Industries Ltd., Civil Action No. 26-4939 (D.N.J.) (ES)(ADS), and Takeda Pharmaceutical Company Limited v. Sun Pharmaceutical Industries Ltd., Civil Action No. 26-2051 (D.N.J.) (ES) (ADS) are related to the matter in controversy because the matter in controversy involves the same plaintiff and because Qilu is seeking FDA approval to market a generic version of the same pharmaceutical product. I further certify that the matter captioned Takeda Pharmaceutical Company Ltd. v. Qilu Pharmaceutical (Hainan) Co., Ltd., Civil Action No. 26-1633 (D.N.J.) (ES)(ADS) (consolidated) is related to the matter in controversy because it involves the same parties and because Qilu is seeking FDA approval to market a generic version of the same pharmaceutical product. I further certify that, to the best of my knowledge, the matter in controversy is not the subject of any other action pending in any court or of any pending arbitration or administrative proceeding.

- 10 - Case 2:26-cv-12587 Document 1 Filed 09/23/26 Page 11 of 11 PageID: 11 Dated: September 23, 2026 OF COUNSEL: F. Dominic Cerrito Angus Chen Andrew Chalson Elizabeth Murphy Marta Godecki Abigail DeMasi QUINN EMANUEL URQUHART & SULLIVAN, LLP 295 Fifth Avenue New York, New York 10016 Jihong Lou QUINN EMANUEL URQUHART & SULLIVAN, LLP 555 13th Street NW, Suite 600 Washington, D.C. 20004 By: s/ Charles M. Lizza Charles M. Lizza Sarah A. Sullivan Alexander L. Callo SAUL EWING LLP 650 College Road East, Suite 4000 Princeton, NJ 08540 (973) 286-6700 clizza@saul.com Attorneys for Plaintiff Takeda Pharmaceutical Company Limited